challenged on the ground that they are violative of Article 14. The Supreme Court held that "where Article 31-C comes in, Article 14 goes out".

6. The foreign sovereigns (rulers), ambassadors and diplomats enjoy immunity from criminal and civil proceedings.

7. The UNO and its agencies enjoy the diplomatic immunity.

2. Prohibition of Discrimination on Certain Grounds

Article 15 provides that the State shall not discriminate against any citizen on grounds only of religion, race, caste, sex or place of birth. The two crucial words in this provision are 'discrimination' and 'only'. The word 'discrimination' means 'to make an adverse distinction with regard to' or 'to distinguish unfavourably from others'. The use of the word 'only' connotes that discrimination on other grounds is not prohibited.

The second provision of Article 15 says that no citizen shall be subjected to any disability, liability, restriction or condition on grounds only of religion, race, caste, sex, or place of birth with regard to (a) access to shops, public restaurants, hotels and places of public entertainment; or (b) the use of wells, tanks, bathing ghats, road and places of public resort maintained wholly or partly by State funds or dedicated to the use of general public. This provision prohibits discrimination both by the State and private individuals, while the former provision prohibits discrimination only by the State.

There are four exceptions to this general rule of non-discrimination:

1. The state is permitted to make any special provision for women and children. For example, reservation of seats for women in local bodies or provision of free education for children.

2. The state is permitted to make any special provision for the advancement of any socially and educationally backward classes or for the scheduled castes and the scheduled tribes[4]. For example, reservation of seats or fee concessions in public educational institutions.

3. The state is empowered to make any special provision for the advancement of any socially and educationally backward classes or for the scheduled castes and the scheduled tribes regarding their admission to educational institutions. This also includes the private educational institutions, whether aided or unaided by the state, except the minority educational institutions.

4. The state is empowered to make any special provision for the advancement of any economically weaker sections. Further, the state is allowed to make a provision for the reservation of upto 10% of seats for such sections in admission to educational institutions including private educational institutions, whether aided or unaided by the state, except the minority educational institutions. This reservation of upto 10% would be in addition to the existing reservations. For this purpose, the economically weaker sections would be notified by the state from time to time on the basis of family income and other indicators of economic disadvantage.

The various provisions contained in Article 15 are summarised in Table 8.3.

Reservation for OBCs in Educational Institutions The above exception(c) was added by the 93rd Amendment Act of 2005. In order to give effect to this provision, the Centre enacted the Central Educational Institutions (Reservation in Admission) Act, 2006, providing a quota of 27% for candidates